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County: los-angeles

Division: Civil Law and Motion

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Case Number: 24BBCV00120 Hearing Date: September 4, 2026 Dept: A

LOS ANGELES SUPERIOR COURT

NORTH CENTRAL DISTRICT - BURBANK

DEPARTMENT A

TENTATIVE RULING

SEPTEMBER 4, 2026

MOTION TO COMPEL FURTHER RESPONSES

Los

Angeles Superior Court Case # 24BBCV00120

MP: Plaintiff

Yofiel Bibi

RP: Defendant Los

Angeles County Metropolitan Transportation Authority

NOTICE:

The Court is not requesting oral argument on this matter. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no

argument is received.

Notice may be given either by email at BurDeptA@LACourt.org
or by telephone at (818) 260-8412.

ALLEGATIONS:

A.

Complaint

Yofiel Bibi, a minor, by and through his Guardian Ad Litem,
Sharon Bibi ("Plaintiff") alleges that on September 11, 2023 at approximately
8:00 p.m., he was riding a non-electric scooter at the Chandler Boulevard and
Bellaire Avenue intersection in Valley Village.

As Plaintiff turned left, he was struck by a bus operated by Defendant Los Angeles County Metropolitan Transportation
Authority ("LACMTA"). Plaintiff asserts that
he submitted government claims with Defendants City of Los Angeles ("City") and
County of Los Angeles ("County"), but City and County each denied his
claims.

The Complaint, filed January 16, 2024, alleges: (1) Negligence – Motor Vehicle; (2) Negligence (Gov. Code, §
815.2(a)); (3) Negligence – Premises Liability; (4) General Negligence; and (5)
Dangerous Condition of Public Property (Gov. Code, § 835). On April 6, 2026, Plaintiff named Woods
Maintenance Services, Inc. (Doe 1, "Woods").

B.

Cross-Complaint

On April 17, 2024, City filed a cross-complaint against
LACMTA for: (1) Indemnification; (2) Apportionment of Fault; and (3)
Declaratory Relief. On August 12, 2026,
City dismissed its cross-complaint without prejudice.

On March 27, 2026, LACMTA filed a cross-complaint against
Woods for: (1) Indemnification; (2) Apportionment of Fault; (3) Declaratory Relief;
and (4) Contractual Defense and Indemnification.

On May 6, 2026, Woods filed a cross-complaint against Roes
1-10 for: (1) Indemnity; (2) Contribution and Apportionment; and (3) Declaratory
Relief. On August 5, 2026, Woods named

Far East Landscape & Maintenance, Inc. as Roe 1.

MOTIONS ON CALENDAR:

On May 28, 2026,
Plaintiff filed a Motion to Compel LACMTA's further responses to Requests for
Production, set three ("RPD"). On June
2, 2026, Plaintiff filed a Notice of Errata regarding the hearing date and
motion's accompanying receipt. On August
24, 2026, LACMTA filed an opposition. On
August 28, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

A motion to compel further RPD responses may be brought
based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or
incomplete claims of inability to comply; or (3) unmerited or overly
generalized objections. (C.C.P. § 2031.310(a).)

A motion to compel further production must set forth
specific facts showing good cause justifying the discovery sought by the
inspection demand and be accompanied by a meet and confer declaration. (C.C.P.
§ 2031.310(b)(1).) "Good cause" is shown
by "a disputed fact that is of consequence in the action and the discovery
sought will tend in reason to prove or disprove that fact or lead to other
evidence that will tend to prove or disprove the fact." (Digital
Music News LLC v. Superior Court (2014) 226 Cal.App.4th 216, 224.) The motion must be made within 45 days of
service of the verified response or supplemental verified response, or
on/before any specific late date to which the parties have agreed in
writing. (C.C.P. § 2031.310(c).)

If
the moving party has shown good cause for the requests for production, the
burden is on the objecting party to justify the objections. (Kirkland v.
Superior Court of Los Angeles County (2002) 95 Cal.App.4th 92, 98.)

ANALYSIS:

A.
RPD

Plaintiff moves to compel LACMTA's further responses to RPD, Set 3, Nos. 1, 4-6, 8-13, and 15.

On April 7, 2026, LACMTA served its RPD, Set 3, responses on Plaintiff, which was accompanied with a privilege log. (Owen Decl., Exs. 1-2.) The parties thereafter met and conferred about the responses and privilege log. (Id., ¶¶4-6, Exs. 4-5.) On May 1, 2026, defense counsel served supplemental responses, stating that "Verification will be provided." (Id., ¶7, Exs. 6-7.) Plaintiff's counsel, Andrew Owen, states that on May 3, 2026, he requested verifications and identifying documents based on Woods' production, but did not receive verifications. (Id., ¶ 7-8, Ex. 8.)

Preliminarily, with respect to the verifications, LACMTA explains that it received a signed verification from its representative on May 28, 2026 for the supplemental responses, but the verification was inadvertently not immediately served on Plaintiff's counsel. LACMTA states that it served the verification on August 17, 2026 before the opposition was due. (Tatikian Decl., ¶2, Ex. A.) As the verification issue has been resolved, this will not be a basis to grant the motion.

Next, the Court turns to the substantive merits regarding RPD Nos. 1, 4-6, 8-13, and 15.

RPD No. 1 seeks all contracts for service between Woods and LACMTA relating to the "flora" along the LA Metro Orange Line (aka LA Metro G Line; hereinafter "G Line") from January 1, 2019 to and through December 31, 2025.

In its supplemental responses, LACMTA objected that the RPD was vague and overly broad and burdensome; lacked relevance and proportionality to the matters/issues in dispute; sought confidential, proprietary, trade secret, or other sensitive business data or information; sought information protected from disclosure by the attorney-client privilege and the attorney work-product doctrine, including work performed by any privileged litigation consultant; and sought contracts, amendments, scopes of work, or other materials reflecting post-incident remedial or precautionary measures,

which are inadmissible to prove negligence or culpable conduct under Evidence Code §1151. Without waiving objections, LACMTA responded: “After a thorough search or after a diligent search and reasonable inquiry, defendants will produce any and all documentation from January 1, 2019, to the date of the subject incident. Any documents withheld will be identified in a privilege log.”

LACMTA

argues that it produced all documents within the scope of its discovery obligations pursuant to C.C.P. § 2017.010 by producing non-privileged documents, documents post-accident (anything past September 11, 2023) are privileged and not relevant to the action pursuant to Evidence Code, § 1151, and that Plaintiff has not established good cause of the production. It also argues that if post-accident contracts are compelled, then the Court should order the parties to enter a protective order.

Although

Plaintiff did not expressly use the words “good cause” in his separate statement regarding RPD No. 1, he adequately addresses why the contracts are relevant. (See Pl.’s Separate Statement at 2:26-3:5.) The moving party must first offer facts demonstrating: “good cause justifying the discovery sought by the demand.” (C.C.P.

§2031.310(b)(1).) This burden “is met

simply by a fact-specific showing of relevance.” (TBG

Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448; see

also Glenfed Dev. Corp. v. Superior Court

(1997) 53 Cal.App.4th 1113, 1117.) Plaintiff

argues the documents sought are relevant because the contracts between LACMTA and Woods governing vegetation maintenance along the G Line are relevant to the scope of Woods’ maintenance obligations, LACMTA’s standard of care, and LACMTA’s constructive notice of vegetation at the Chandler Boulevard/Bellaire Avenue area. The Court finds that

Plaintiff has established good cause with respect to RPD No. 1 in part for the operative contracts at the time of the subject incident. However, Plaintiff does not further justify the relevance of contracts post-dating the subject incident. Thus, the Court will limit LACMTA’s production accordingly.

Next,

the parties dispute whether the documents are discoverable and/or privileged

pursuant to Evidence Code, § 1151 and the scope of discovery (as opposed to admissibility) under C.C.P. § 2017.010.

C.C.P. § 2017.010 states: “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.”

Evidence Code, § 1151 states:

“When, after the occurrence of an event, remedial or precautionary measures are taken, which, if taken previously, would have tended to make the event less likely to occur, evidence of such subsequent measures is inadmissible to prove negligence or culpable conduct in connection with the event.” LACMTA relies on *Fox v. Kramer* (2000) 22 Cal.4th 531, arguing that section 1151’s “privilege” expressly limits discovery and admissibility. The Supreme Court stated:

Holding hospital

peer review committee records per se inadmissible under Evidence Code section 1151, as well as nondiscoverable under Evidence Code section 1157, would further advance the legislative goal of fostering medical staff candor, albeit at the additional cost of further limiting a plaintiff’s access to evidence of negligence or culpable conduct.

The privileges set

out under these provisions of the Evidence Code are legislative creations; courts do not have the power to expand them. [Citations.]

As a matter of

statutory construction, the Court of Appeal’s conclusion appears strained. Evidence Code section 1151 plainly refers to “remedial or precautionary measures,” not to mere reports or investigations conducted after an accident or

other event resulting in injury. By its terms, it would appear to include only subsequent actions taken to repair or correct a problem identified by an investigation—not the factual inquiries undertaken to determine whether such repair or correction was necessary. Evidence Code section 1151 also refers to measures “which, if taken previously, would have tended to make the event less likely to occur.” (Italics added.) Of course, reports or investigations relating to an incident could not have been made prior thereto.

The Court of

Appeal's construction of the general provision of Evidence Code section 1151 also appears inconsistent with the Legislature's enactment of the more specific provisions of Evidence Code section 1157, which expressly preclude only the discovery of peer review committee records and the use of involuntary testimony by a “person in attendance” at a meeting of a peer review committee. (Evid. Code, § 1157, subds. (a) & (b); *West Covina Hospital v. Superior Court*, supra, 41 Cal.3d at p. 854.) Evidence Code section 1157, subdivision (b) provides only that a person is not “required to testify” as to what transpired at a peer review committee meeting (italics added); under Evidence Code section 1151, a person is not permitted to testify concerning subsequent remedial measures. “In the construction of a statute ... when a general and particular provision are inconsistent, the latter is paramount to the former.” (Code Civ. Proc., § 1859.)

The hospital and

Drs. Kramer and Kushlan argue that the general and specific provisions are not inconsistent: the general provision, Evidence Code section 1151, bars only admissibility, not discovery, of any evidence showing subsequent remedial measures; the specific provision, Evidence Code section 1157, subdivision (a), bars only discovery, not admissibility, of hospital peer review committee records. They urge that the Legislature must have intended to protect hospital peer review committee evidence not only from admissibility, as a subsequent remedial measure, but also from discovery.

Contrary to

defendants' argument, however, Evidence Code section 1157 expressly limits not only discovery but also specifies what evidence is subject to use at trial. Thus, compulsory testimony is expressly precluded under the statute, which provides, in subdivision (b), that “no person in attendance at a meeting of [a hospital peer review committee] shall be required to testify as to what

transpired at that meeting.” The latter provision would be superfluous if the Legislature intended in every case that all evidence regarding hospital peer review was already inadmissible under Evidence Code section 1151 to prove negligence. [Footnote.]

(Fox v. Kramer (2000) 22 Cal.4th 531, 543–545 [citations and footnote omitted].)

The Court disagrees with LACMTA’s reading of Fox. The Fox Court considered sections 1151 in conjunction with section 1157 regarding medical peer reviews. Section 1157 explicitly stated that such records “shall not be subject to discovery.” (Evid. Code, § 1157(a).) In contrast, section 1151 states that subsequent remedial conduct is “inadmissible to prove negligence or culpable conduct in connection with the event.” The Court finds that this distinction is important, particularly when section 1157 does not come into play under the facts of this case.

Nevertheless, the Court finds merit to LACMTA’s argument regarding the overbroad scope of RPD No. 1, which seeks service contracts between Woods and LACMTA from January 1, 2019 to December 31, 2025. The subject incident occurred on September 11, 2023. While the service contracts leading up to this point may be relevant to the action, Plaintiff has not established why documents post-dating the accident are relevant. As noted above, evidence of subsequent remedial conduct may potentially be discoverable (though not admissible), but Plaintiff has not shown how contracts entered after the subject incident are reasonably calculated to lead to the discovery of admissible evidence, as those contracts do not delineate the scope of Woods’ services at the time of the subject incident, LACMTA’s standard of care, or whether LACTMA was on notice of the vegetation at the time of or before the subject incident (as opposed to after the subject incident already occurred).

Lastly, the Court notes that based on defense counsel’s meet and confer letter, LACMTA offered to produce documents pursuant to a protective order regarding RPD Nos. 1, 4-5, and 9-11. (Owen Decl., Ex. 4 [LACMTA’s April 17, 2026 Letter at p.2].) In response, Plaintiff’s counsel acknowledged LACMTA’s “concession” on the protective order,

but argued that withheld documents must still appear on a code-compliant privilege log. (Owen Decl., Ex. 5 [Pl.'s April 18, 2026 Letter at pp.1-2].) On April 21, 2026, the parties telephonically met and conferred, but it does not appear the parties pursued a protective order as no Stipulation/Protective Order was submitted with the Court. Had further adequate meet and confer efforts occurred, issues regarding RPD No. 1 may have already been resolved.

As matters stand, the Court denies the motion as to RPD No. 1. LACMTA already responded that it will produce documents from January 1, 2019 to the date of the subject incident (September 11, 2023), and that any documents withheld would be identified in a privilege log. A review of LACMTA's privilege log shows that in relation to RPD No. 1, LACMTA identified a contract and modification dated August 1, 2024, which are after the subject incident. LACMTA will not be compelled to produce these documents based on RPD No. 1 for the reasons stated above.

RPD No. 4 seeks all documents that show how Woods was to inspect and maintain the flora along the G Line from January 1, 2019 to and through December 31, 2025. Plaintiff argues that good cause exists based on the same three reasons above—that documents showing how Woods was to inspect/maintain vegetation along the G Line go directly to: (1) the scope of Woods' contractual maintenance obligations; (2) whether the vegetation at Chandler/Bellaire was being maintained in compliance with LACMTA's requirements; and (3) LACMTA's notice of any deficiencies in the vegetation maintenance at the incident location. Plaintiff also argues that the documents establish the feasibility of precautionary measures and to impeach witnesses testifying about LACMTA's pre-incident standards.

RPD No. 6 seeks all documents that detail or mention sight or visual obstruction requirements or rules for flora along the G Line from January 1, 2019 to and through December 31, 2025. Plaintiff argues that the documents are relevant to LACMTA's sight or visual obstruction requirements/rules for G Line vegetation, whether the vegetation conditions violated those requirements, and if LACMTA had notice of the violation.

LACMTA objected to RPD Nos. 4 and 6

on similar grounds as RPD No. 1 and responded, without waiving objections: "After a thorough search or after a diligent search and reasonable inquiry, defendants will produce any and all documentation from January 1, 2019, to the date of the subject incident. Defendants will produce documents after the date of the subject incident upon execution of a protective order/confidentiality agreement executed by plaintiff's counsel. Any documents withheld will be identified in a privilege log."

RPD No. 5 seeks all documents that detail or mention height requirements or rules for flora along the G Line from January 1, 2019 to and through December 31, 2025. Plaintiff argues that documents detailing height requirements or rules for vegetation along the G Line corridor are relevant to whether LACMTA maintained, or required Woods to maintain, the vegetation at Chandler/Bellaire in compliance with applicable standards. Plaintiff argues that documentation showing what height requirements existed, when they were established, and whether they were modified after the incident are central to establishing both liability and notice. LACMTA objected and responded to RPD No. 5 as it did to RPD No. 1.

Plaintiff's good cause arguments address, in part, the relevance of the documents with respect to height and sight/visual obstruction requirements/rules for the flora before and up to the subject incident but fail to address why they are relevant after the incident took place. For RPD Nos. 4 and 6, Plaintiff has not established good cause regarding why inspection/maintenance documents and sight/visual obstruction requirements post-incident are relevant to the action or why they would tend to show LACMTA's notice of violations. Furthermore, for RPD No. 5, Plaintiff argues in a conclusory manner that modifications to the height requirement documentation after the incident is central to establishing LACMTA's liability and notice, but he has not explained how or why this would be the case. Thus, for the same reasons discussed with respect to RPD No. 1, the Court denies the motion as to RPD Nos. 4-6.

RPD No. 8 seeks all invoices for services rendered by Woods and LACMTA for the flora along the G Line from January 1, 2019 to and through December 31, 2025. Plaintiff argues that invoices predating the incident are directly relevant for the same three reasons above, and that Evidence Code, § 1151 does not apply for invoices for work performed before the incident, such that pre-incident invoices must be produced without condition. He also argues that

post-incident invoices are relevant to show LACMTA's pre-incident notice, the feasibility of precautionary measures, to identify which party directed and performed hedge removal, and to impeach witnesses.

LACMTA objected to RPD No. 8 on similar grounds above, and responded without waiving objections: "After a diligent search and having made a reasonable inquiry, Responding Party states that it has no non-privileged responsive documents, as such documents have never existed." LACMTA argues that the RPD is vague because it is unclear whether Plaintiff is seeking all invoices for work performed by Woods to LACMTA, or some other entity with respect to the flora, and whether the invoices are for all work over an 18-mile stretch of the Orange Line. (Opp. at pp.12-13.) A review of LACMTA's privilege log also shows that it did not identify any privileged documents responsive to this RPD.

C.C.P. § 2031.230 states: "A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item."

LACMTA's response is technically code-compliant as it responded that it made a diligent search and reasonable inquiry, but no documents exist. However, in reply, Plaintiff argues that this response is inconsistent with Woods' produced Invoice No. 16750 dated May 6, 2024, billing LACMTA for G Line landscape and irrigation maintenance, including right of way areas outside the fence along Chandler Boulevard. (Owen Reply Decl., Ex. 2.) A review of Exhibit 2 includes several Woods invoices from 2019 to 2023. Thus, it appears that invoices do exist. Thus, the Court grants the motion as to RPD No. 8.

RPD No. 9 seeks all work

orders, service tickets, maintenance logs, task orders, or similar documents relating to the inspection and/or maintenance of the flora along the G Line from January 1, 2019 to December 31, 2025.

Plaintiff argues that the privilege log is deficient because it does not identify the specific attorney whose involvement is claimed for any of the logged documents and describing authors as “part of the Bibi incident investigation in anticipation of litigation” does not establish the attorney-client privilege or work product protection, such that a revised log must be produced, identifying: (1) the specific attorney whose involvement is claimed; (2) the nature of the legal advice or direction at issue; and (3) the factual basis supporting the privilege claim, including the date on which litigation was anticipated and how that date is supported.

If an objection to a document request is based on a claim of privilege or work product, then the response to the request shall provide sufficient factual information for the other parties to evaluate the merits of the claim, including, if necessary, a privilege log. (C.C.P. 2031.240(c)(1).) “A privilege log must identify with particularity each document the responding party claims is protected from disclosure by a privilege and provide sufficient factual information for the propounding party and court to evaluate whether the claim has merit. (§ 2031.240, subds. (b) & (c); *Wellpoint Health Networks, Inc. v. Superior Court* (1997) 59 Cal.App.4th 110, 130, 68 Cal.Rptr.2d 844.) The precise information required for an adequate privilege log will vary from case to case based on the privileges asserted and the underlying circumstances. In general, however, a privilege log typically should provide the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document's date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted.” (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1130.)

The privilege log provides a short description of the document, the author(s), the recipient(s), date, claimed privileges, and the RPDs that the documents are responsive to. (Owen Decl., Ex. 2.) While the descriptions include statements that the authors were part of the investigation team, there is no further

explanation regarding whether the documents included attorney-client communications, was done at the instruction of counsel in anticipation of litigation, if any attorneys were involved, etc. Without further detail, the Court cannot ascertain whether the privileges apply.

As such, the motion is granted as to RPD No. 9 so that LACMTA may supplement its privilege log with additional details so that Plaintiff may have more information to ascertain whether privileges apply. The parties may then seek to pursue this matter via an Informal Discovery Conference rather than motion practice. These conferences are scheduled Monday through Thursday at 4:00 p.m. remotely via L.A. Court Connect.

RPD No. 10 seeks all documents relating to any complaints, reports, observations, or notices that the flora along the G Line obstructed visibility from January 1, 2019 to December 31, 2025.

LACMTA objected to RPD No. 10, but responded without waiving objections: "After a thorough search or after a diligent search and reasonable inquiry, defendants will produce any and all documentation from January 1, 2019, to the date of the subject incident. Any documents withheld will be identified in a privilege log."

LACMTA stated it would produce documents from January 1, 2019 to the date of the subject incident, such that the motion with respect to documents pre-dating or up to the incident date is moot.

However, Plaintiff seeks documents post-incident. Again, it is unclear what relevance those documents may have on this action. Nevertheless, the Court grants the motion as to RPD No. 10 on the same grounds as RPD No. 9 because some of the privilege log entries are ambiguous. For example,

LACMTA identified Incident Report 3,771,987 – "High Shrubbery at Orange Line ROW & Bellaire Needs Trimming or Removal" authored by L. Hernandez (Help Desk, part of the Bibi incident investigation in anticipation of litigation) dated September 13, 2023. However, it is unclear whether this was a call received by the help desk (from Plaintiff or someone else), whether L. Hernandez was separately inputting an incident report based on a call or in direct response to the Bibi investigation, etc. Furthermore, the entry for Sean Davies (dated March 14, 2024) is ambiguous as there is no role attached to his name other than being a part of the Bibi investigation.

Additional details should be provided in the privilege log.

RPD No. 11 seeks all

documents relating to training, manuals, guidelines, or instructions provided to employees or subcontractors for inspecting and maintaining flora along the G Line from January 1, 2019 to December 31, 2025.

LACMTA objected to RPD No. 11, but

responded without waiving objections: "After a thorough search or after a diligent search and reasonable inquiry, defendants will produce any and all documentation from January 1, 2019, to the date of the subject incident. Any documents withheld will be identified in a privilege log."

The Court does not find that these

documents appear to be privileged under Evidence Code, § 1151, the attorney-client privilege, or the attorney work product doctrine. However, the Court will allow the documents to be produced pursuant to a protective order to preserve the potential confidentiality, trade secret, or other sensitive business data/information that LACMTA seeks to preserve. As such, the motion is granted as to RPD No. 11.

RPD No. 12 seeks all

documents relating to work performed by Woods at the Chandler/Bellaire intersection after the subject incident.

Plaintiff argues that these documents are relevant to show who directed head removal after the collision and the allocation of responsibility between Woods and LACMTA. He also argues that these documents are not privileged in any manner as they merely constitute work Woods performed at the subject intersection.

RPD No. 13 seeks all photographs, videos, or other visual media relating to work performed by Woods at the Chandler/Bellaire intersection after the subject incident. Plaintiff argues photographs of public streets are not confidential communications and are directly relevant to who directed/performed post-collision hedge removal.

LACMTA objected to RPD Nos. 12 and

13, but responded without waiving objections: "After a diligent search and having made a reasonable inquiry, Responding Party states that it has no non-privileged responsive documents, as such documents have never

existed.” In opposition, LACMTA reaffirms that no documents exist responsive to these RPDs, such that it cannot produce documents it does not have. (LACMTA Separate Statement at pp. 81, 91.) A review of the privilege log also shows that no documents were identified responsive to RPD Nos. 12-13. In reply, Plaintiff points out that there is a “Shrubbery Removal” email chain, as well as post-collision photographs showing the hedges were trimmed below the fence line, confirming that post-incident work occurred such that LACMTA cannot claim that no documents existed when documents did in fact exist in its privilege log. (See Owen Reply Decl., Ex. 3.) However, the Court cannot ascertain whether Woods was involved in post-incident work, responsive to RPD No. 12, based on the privilege log or Mr. Owen’s exhibits. Furthermore, with respect to RPD No. 13, although Mr. Owen states that post-incident photos are attached, it is unclear who took the photos, whether the photos were produced by LACMTA, etc.

Thus, accepting LACTMA’s responses that no responsive documents exist, the motion is denied as to RPD Nos. 12-13.

RPD No. 15 seeks all communications between LACMTA and Woods about the subject incident.

LACMTA objected to RPD No. 15, but responded without waiving objections: “After a diligent search and having made a reasonable inquiry, Responding Party states that it has no non-privileged responsive documents, as such documents have never existed.” The privilege log does not identify any documents regarding RPD No. 15.

In opposition, LACMTA stands by its response, arguing that the only post-incident document it has is the August 1, 2024 contract, identified in its privilege log, but this document is not a “communication” between Woods and LACMTA regarding the subject incident. (LACMTA Separate Statement at p. 101.) Although Plaintiff argues that it is not credible that LACMTA and Woods would have not communicated about the subject incident and that any non-privileged communications must be produced or privileged communications be identified in the privilege log, Plaintiff has not shown that such documents exist and that LACMTA is refusing to produce them.

As LACMTA's response is
code-complaint, the motion is denied as to RPD No. 15.

B.

Sanctions

In the notice of
motion, Plaintiff seeks \$950 in sanctions against LACMTA and its counsel of
record. Plaintiff's counsel Andrew Owen
states that he spent 3.5 hours reviewing LACMTA's responses, meeting and
conferring, and drafting this motion, and anticipates spending 1.5 hours to
review and respond to the opposition at \$500/hour, but seeks a fraction of the
amount incurred. (Owen Decl., ¶15.)

In light of the
ruling on this motion, the Court denies Plaintiff's request for sanctions as
each party was partially meritorious in their arguments.

RULING:

In the event the
parties submit on this tentative ruling, or a party requests a signed order or
the court in its discretion elects to sign a formal order, the following form
will be either electronically signed or signed in hard copy and entered into
the court's records.

ORDER

Plaintiff Yofiel Bibi's Motion to Compel Further came on regularly for hearing on September 4, 2026, with
appearances/submissions as noted in the minute order for said hearing, and the
Court, being fully advised in the premises, did then and there rule as
follows:

THE

MOTION TO COMPEL DEFENDANT LACMTA'S FURTHER RESPONSES IS DENIED AS TO RPD, SET
THREE, NOS. 1, 4-6, 12-13, AND 15. THE
MOTION IS GRANTED AS TO RPD NO. 8; NOS. 9-10 SO THAT LACTMA MAY PRODUCE A

SUPPLEMENTAL PRIVILEGE LOG; AND NO. 11 SUBJECT TO A PROTECTIVE ORDER.

RESPONSES

SHALL BE DUE WITHIN 30 DAYS OF THIS ORDER.

NO

SANCTIONS SHALL BE AWARDED.

PLAINTIFF TO PROVIDE NOTICE.

IT

IS SO ORDERED.